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4. Availability and termination.

4.1. KAPA ME will use reasonable endeavours to maintain the availability of the App, but are entitled at any time to discontinue providing the App or any part thereof with or without notice to the user.

4.2. KAPA ME may in its sole discretion terminate, suspend and modify the App, with or without notice to the user. KAPA ME will not be liable in the event that it chooses to suspend, modify or terminate the App, other than for processing any orders made prior to such time, to the extent possible.

4.3. Should a user fail to comply with any regulation or policy of KAPA ME, including any incident involving payment of the price of an order for any , KAPA ME may suspend and/or terminate the user's access to the App, without any prejudice to any claims for damages or otherwise that KAPE ME may have against the user.

4.4. KAPA ME may blacklist a on its database, refuse to accept or process payment on any order, and/or to cancel any order concluded between a user and KAPA ME, in whole or in part, on notice to a user:

4.4.1. for purposes of preventing suspected criminal conduct or abusive behaviour towards staff; or
4.4.2. where it suspects that a user is abusing the App; or
4.4.3. where a user has created multiple user profiles to take advantage of a promotion or Coupon intended by KAPA ME to be used once-off by a user.

4.5. KAPA ME accepts no other liability which may arise as a result of such blacklisting, suspension or termination of access to the App and/or refusal to process any order.

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